

OFFICE OF THE SECRETARY

P.O. Box 942883

Sacramento, CA 94283-0001

JUN 28 2018

Honorable Robert F. Moody
Judge of the Superior Court
County of Monterey
240 Church Street
Salinas, CA 93901



Re: Burgess, Jonah
CDC No.: F14969
Case No.: SS041505A
Date of Sentence: January 3, 2006

Dear Honorable Robert F. Moody:

The purpose of this letter is to provide the court with authority to resentence Jonah Burgess pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Burgess was sentenced in 2006, and was convicted of section 245, subdivision (A)(2), Assault With Firearm on pe. The trial court sentenced inmate Burgess on January 3, 2006. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Burgess's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Burgess's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,


SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Amended Complaint

cc: Honorable Lydia M. Villarreal, Monterey County Presiding Judge
Monterey District Attorney
Private Attorney

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]

CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF MONTEREY

FILED

NOV 19 2015

PEOPLE OF THE STATE OF CALIFORNIA vs.
 DEFENDANT: **Jonah Burgess**

DOB: **11-25-83**

SS041505A

-A

AKA:

CIN:

☐ NOT PRESENT

BOOKING #:

TERESA A. RISI
 CLERK OF THE SUPERIOR COURT
LYDIA GUTIERREZ DEPUTY

COMMITMENT TO STATE PRISON
 ABSTRACT OF JUDGMENT

11-13-15

☒ AMENDED
 ABSTRACT

-D

DATE OF HEARING

01-03-06

DEPT. NO.

Courtroom 8A

JUDGE

Robert F. Moody

CLERK

Jamie Adcock

REPORTER

Yvette Gallardo-Garmon

PROBATION NO. OR PROBATION OFFICER

Desiree Saldana

COUNSEL FOR PEOPLE

Chris Harter

COUNSEL FOR DEFENDANT

Terrance McCleerey

☐ APPTD.

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment
 (number of pages attached)

CNT.	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (L, M, Y)	CONCURRENT	CONSECUTIVE 1/3 VIOLENT	CONSECUTIVE 1/3 NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (prior to date)	654 STAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA								YRS.	MOS.
4	PC	212.5(A)	Robbery: First Degree	2004	01-03-06			X	L							3	0
3	PC	245(A)(2)	Assault with firearm on pe	2004	01-03-06			X	M		X					1	0

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

CNT.	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL
4	PC 12022.53(B)	10							10 0
3	PC 12022.5	1 yr 4 mo	PC 186.22(B)(1)	3 yr 4 mo	PC 12022.7	1			5 8

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL

4. ☐ Defendant was sentenced pursuant to PC 667 (b)-(i) or PC 1170.12 (two-strikes).

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

6. TOTAL TIME ON ATTACHED PAGES:

COUNTY	CASE NUMBER

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME EXCLUDING COUNTY JAIL TERM: **19** **8**

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

Page 1 of 2

SS041505A

-A

-B

-C

-D

9. FINANCIAL OBLIGATIONS (including any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$3,800. per PC 1202.4(b) forthwith per PC 2085.5; \$3,800. per PC 1202.45 suspended unless parole is revoked.
Case B: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
Case C: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
Case D: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.

b. Restitution per PC 1202.4(f):

Case A: \$7,000.00 ☐ Amount to be determined to ☒ victim(s)* ☐ Restitution Fund
Case B: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
Case C: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
Case D: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

(*List victim name(s) if known and amount breakdown in item 11, below.)

c. Fine(s):

Case A: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ CC ☐ CS
Case B: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ CC ☐ CS
Case C: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ CC ☐ CS
Case D: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ CC ☐ CS

d. Lab Fee and Drug Program Fee:

Case A: Lab Fee: \$ per HS 11372.5(a) for counts ☐ Drug Program Fee of \$150 per HS 11372.7(a).
Case B: Lab Fee: \$ per HS 11372.5(a) for counts ☐ Drug Program Fee of \$150 per HS 11372.7(a).
Case C: Lab Fee: \$ per HS 11372.5(a) for counts ☐ Drug Program Fee of \$150 per HS 11372.7(a).
Case D: Lab Fee: \$ per HS 11372.5(a) for counts ☐ Drug Program Fee of \$150 per HS 11372.7(a).

10. TESTING

a. ☐ AIDS pursuant to PC 1202.1 b. ☒ DNA pursuant to PC 296 c. ☐ other (specify):

1. Other orders (specify):

2. EXECUTION OF SENTENCE IMPOSED

- a. ☒ at initial sentencing hearing. A
b. ☐ at resentencing per decision on appeal.
c. ☐ after revocation of probation.
d. ☐ at resentencing per recall of commitment. (PC 1170(d).)
e. ☐ other (specify):

13. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	683	594	☒ 4019 ☐ 2933.1
B			☐ 4019 ☐ 2933.1
C			☐ 4019 ☐ 2933.1
D			☐ 4019 ☐ 2933.1
Date Sentence Pronounced:		Time Served in State Institution:	
01-03-06		DMH	CDC CRC
		[]	[] []

- i. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☒ the reception center designated by the director of the California Department of Corrections.
☒ other (specify): North Kern State Prison, Delano, CA

CLERK OF THE COURT

hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE

MARIA GONZALEZ

DATE

11-13-15

RECEIVED

NOV 30 2015

CDCR-LEGAL PROCESSING
DEPT. OF CORRECTIONS & REHABILITATION

SUPERIOR COURT OF CALIFORNIA, COUNTY OF MONTEREY

The People of the State of California, Plaintiff vs. Burgess, Jonah, Defendant	Hon. Robert F. Moody Clerk: Jamie Adcock CSR: Yvette Gallardo-Garmon - CSR#12889 Recording No.
Amended Minutes: Probation/Sentencing January 3, 2006	Case No. SS041505A Courtroom 8A
Charges: 1: PC186.22(B)(1) [Street Gang Act:Conv Felony] ENH. Dismissal 1: PC664/187(a) [Attempted Murder] ENH. Dismissal 1: PC12022.7 [Gbi:Commission Of Felony] ENH. Dismissal 1: PC664/187(a) [Attempted Murder] FEL. Dismissal 2: PC12022.7 [Gbi:Commission Of Felony] ENH. Dismissal 2: PC186.22(B)(1) [Street Gang Act:Conv Felony] ENH. Dismissal 2: PC246 [Shoot At Inhabited Dwelling/Vehicle/Etc.] FEL. Dismissal 3: PC186.22(B)(1) [Street Gang Act:Conv Felony] ENH. Admitted 3: PC12022.5(a) [Used Firearm:Commission Of Fel] ENH. Admitted 3: PC12022.7 [Gbi:Commission Of Felony] ENH. Admitted 3: PC245(a)(2) [Assault With Firearm On Person] FEL. Conviction: Nolo Plea 4: PC186.22(B)(1) [Street Gang Act:Conv Felony] ENH. Dismissal 4: PC12022.5(a) [Used Firearm:Commission Of Fel] ENH. Dismissal 4: PC212.5(a) [Robbery:First Degree] FEL. Conviction: Nolo Plea 5: PC186.22(B)(1) [Street Gang Act:Conv Felony] ENH. Dismissal	

Nature of proceedings: Sentencing.

Deputy District Attorney Chris Harter appeared.

Defendant appears and is in custody on this case.

Defendant appeared with Counsel Terrance McCleerey.

Probation Officer Desiree Saldana appeared.

Case regularly called for sentencing. Court has read and considered report and recommendation of Probation Officer, and Diagnostic Report if any.

Defendant waives formal arraignment for pronouncement of judgment.

Defendant states there is no legal cause why judgment should not be pronounced.

Probation is denied.

As to count 4: imposed the lower term of 3 year(s), 0 month(s), 0 day(s).

Plus enhancement for allegation number 1 as to count 4 pursuant to PC 12022.53(B) of 10 year(s).

As to count 4 a total of 13 years.

As to count 3: imposed 1/3 the middle term of 1 year(s), 0 month(s), 0 day(s).

Plus enhancement for allegation number 1 as to count 3 pursuant to PC 12022.5 1/3 the middle term of 1 year(s), 4 month(s).

Plus enhancement for allegation number 2 as to count 3 pursuant to PC 186.22(B)(1) 1/3 the middle term of 3 year(s), 4 month(s).

Plus enhancement for allegation number 3 as to count 3 pursuant to PC 12022.7 1/3 the middle term of 1 year(s).

As to count 3 a total of 6 years 8 months.

Defendant committed to department of corrections for the total fixed term of 19 year(s), 8 month(s), 0 day(s).

*****Amended by order of court on Friday, November 13, 2015, Teresa A. Risi, Court Executive Officer, by Maria Gonzalez, Deputy.*****

Credit for time served of 594 days plus 89 days good and work time, for a total of 683 days.

*****Amended by order of court on Monday, June 12, 2006, Lisa M. Galdos, Executive Officer, by Jamie Adcock Deputy.*****

Pay restitution fine of \$3,800.00 to state restitution fund (PC 1202.4)

Pay additional restitution fine in same amount assessed pursuant to PC 1202.4(b). This restitution fine shall be suspended unless parole is revoked (PC 1202.45).

Defendant to make restitution in the amount of \$7,000.00 to victim through the Department of Corrections. (PC 1202.4(f)).

Defendant to provide two specimens of blood, a saliva sample, right thumbprint, and full palm impressions of each hand for law enforcement identification analysis pursuant to Section 296(a)(1) of the Penal Code.

Court retains jurisdiction for purposes of restitution.

Weapons confiscated be declared a dangerous nuisance & disposed of According to statute.

Count 1 dismissed on motion of the District Attorney. Reason for dismissal or discharge: Furtherance of Justice.(PC 1385.)

Count 2 dismissed on motion of the District Attorney. Reason for dismissal or discharge: Furtherance of Justice.(PC 1385.)

Count 5 dismissed on motion of the District Attorney. Reason for dismissal or discharge: Furtherance of Justice.(PC 1385.)

Count 6 dismissed on motion of the District Attorney. Reason for dismissal or discharge: Furtherance of Justice.(PC 1385.)

Defendant to remain In-Custody

Sheriff to deliver Defendant into custody of the Director of California Institution for Men at North Kern State Prison,
Delano, CA.//

Dated: _____

Marla O. Anderson, Presiding Judge
(Pursuant to CCP § 635)



I HEREBY CERTIFY THAT THE FORGOING DOCUMENT IS A
TRUE COPY OF THE ORIGINAL ON FILE IN MY OFFICE.

DATE: 11/19/15
TERESA A. RISI, CLERK OF THE SUPERIOR COURT

BY _____ DEPUTY

LYDIA GUTIERREZ

1 DEAN D FLIPPO
District Attorney
2 MONTEREY COUNTY
By: CHRISTINE HARTER
3 Deputy District Attorney
240 CHURCH ST
4 SALINAS, CA 93901
5 Telephone: (831) 755-5070
6 Attorneys for Plaintiff

FILED IN COURT
SEP 02 2004

ON
LISA M. GALDOS, CLERK OF THE SUPERIOR COURT
BY Irene Lastio DEPUTY

8 SUPERIOR COURT OF CALIFORNIA, COUNTY OF MONTEREY
9 SALINAS DIVISION

10 The People of the State of California,	) No 04030040
11	) SA Case
12 Plaintiff,	) DA Case: COM 0249406
13 v.	) AMENDED
14 JONAH BURGESS,	) COMPLAINT
15 GREGORY LOPEZ,	) MS041505A
16 Defendant(s).	) ARRAIGN DATE:

17 I, the undersigned, say, on information and belief, that in
18 the County of MONTEREY, State of California:

19 AS TO JONAH BURGESS, ONLY
20 PC 664/187(A) ATTEMPTED DELIBERATE, PREMEDITATED MURDER

21 COUNT: 001, On or about MARCH 1, 2004 the crime of ATTEMPTED
22 WILLFUL, DELIBERATE, PREMEDITATED MURDER, in violation of
23 Section 664/187(A) of the Penal Code, a FELONY, was committed by
24 JONAH BURGESS, who did willfully, unlawfully, and with malice
25 aforethought attempt to murder JOHN DOE #1, a A HUMAN BEING. It
26 is further alleged that the aforesaid attempted murder was
27 committed willfully, deliberately and with premeditation within
28 the meaning of Penal Code Section 664(a) and is a serious felony

CT 7 186 22A
(5-1-04) 1.

Kel added 3-17-05
bso I knew

1 pursuant to Penal Code Section 1192.7(c) and a violent felony
2 pursuant to Penal Code section 667.5(c).

3

4 PC 12022.5 AS TO JONAH BURGESS, ONLY
USE OF FIREARM IN COMMISSION OF FELONY

5 It is further alleged that in the commission and the attempted
6 commission of the above offense, the defendant(s) JONAH BURGESS,
7 personally used a firearm, to-wit: HANDGUN, within the meaning
8 of Penal Code Section 12022.5(a).

9

10 PC 186.22(B)(1) AS TO JONAH BURGESS, ONLY
STREET TERRORISM

11 It is further alleged that in the commission and attempted
12 commission of the above offense, the defendant committed said
13 crime for the benefit of, at the direction of, or in association
14 with NORTENO CRIMINAL STREET GANG, with the specific intent to
15 promote, further, or assist in any criminal conduct by gang
16 members, in violation of Penal Code Section 186.22(b)(1).

17

18 PC 12022.7 AS TO JONAH BURGESS, ONLY
COMMISSION OF FELONY WITH GREAT BODILY INJURY

19 It is further alleged that in the commission of the above
20 offense the said defendant(s) JONAH BURGESS, with the intent to
21 inflict such injury, personally inflicted great bodily injury
22 upon JOHN DOE #1, not an accomplice to the above offense, within
23 the meaning of Penal Code Section 12022.7 and also causing the
24 above offense to be a serious FELONY within the meaning of Penal
25 Code Section 1192.7(c)(8).

26

27 PC 246 AS TO JONAH BURGESS, ONLY
SHOOTING AT OCCUPIED MOTOR VEHICLE

28 COUNT: 002, for a further and separate cause of complaint, being

1 a different offense from but connected in its commission with
2 the charge set forth in Count 001, complainant further complains
3 and says: On or about MARCH 1, 2004 the crime of SHOOTING AT
4 OCCUPIED MOTOR VEHICLE, in violation of Section 246 of the Penal
5 Code, a FELONY, was committed by JONAH BURGESS, who at the time
6 and place last aforesaid, did willfully, unlawfully and
7 maliciously discharge a firearm at an occupied motor vehicle.

8
9 PC 186.22 (B) (1) AS TO JONAH BURGESS, ONLY
STREET TERRORISM

10 It is further alleged that in the commission and attempted
11 commission of the above offense, the defendant committed said
12 crime for the benefit of, at the direction of, or in association
13 with NORTENO CRIMINAL STREET GANG, with the specific intent to
14 promote, further, or assist in any criminal conduct by gang
15 members, in violation of Penal Code Section 186.22 (b) (1).

16
17 PC 12022.7 AS TO JONAH BURGESS, ONLY
COMMISSION OF FELONY WITH GREAT BODILY INJURY

18 It is further alleged that in the commission of the above
19 offense the said defendant(s) JONAH BURGESS, with the intent to
20 inflict such injury, personally inflicted great bodily injury
21 upon JOHN DOE #1, not an accomplice to the above offense, within
22 the meaning of Penal Code Section 12022.7 and also causing the
23 above offense to be a serious FELONY within the meaning of Penal
24 Code Section 1192.7 (c) (8).

25
26 PC 245 (A) (2) AS TO JONAH BURGESS, ONLY
ASSAULT WITH FIREARM ON PERSON

27 COUNT: 003, for a further and separate cause of complaint, being
28 a different offense from but connected in its commission with

1 the charge set forth in Count 002, complainant further complains
2 and says: On or about MARCH 1, 2004 the crime of ASSAULT WITH A
3 FIREARM, in violation of Section 245(a)(2) of the Penal Code, a
4 FELONY, was committed by JONAH BURGESS, who did willfully and
5 unlawfully commit an assault on JOHN DOE #1, with a firearm, to
6 wit, HANDGUN

7

8 PC 12022.5 AS TO JONAH BURGESS, ONLY
USE OF FIREARM IN COMMISSION OF FELONY

9 It is further alleged that in the commission and the attempted
10 commission of the above offense, the defendant(s) JONAH BURGESS,
11 personally used a firearm, to-wit: HANDGUN, within the meaning
12 of Penal Code Section 12022.5(a).

13

14 PC 186.22(B)(1) AS TO JONAH BURGESS, ONLY
STREET TERRORISM

15 It is further alleged that in the commission and attempted
16 commission of the above offense, the defendant committed said
17 crime for the benefit of, at the direction of, or in association
18 with NORTENO CRIMINAL STREET GANG, with the specific intent to
19 promote, further, or assist in any criminal conduct by gang
20 members, in violation of Penal Code Section 186.22(b)(1).

21

22 PC 12022.7 AS TO JONAH BURGESS, ONLY
COMMISSION OF FELONY WITH GREAT BODILY INJURY

23 It is further alleged that in the commission of the above
24 offense the said defendant(s) JONAH BURGESS, with the intent to
25 inflict such injury, personally inflicted great bodily injury
26 upon JOHN DOE #1, not an accomplice to the above offense, within
27 the meaning of Penal Code Section 12022.7 and also causing the
28 above offense to be a serious FELONY within the meaning of Penal

1 Code Section 1192.7(c) (8) .

2

3 AS TO ALL DEFENDANTS
PC 212.5(A) FIRST DEGREE RESIDENTIAL ROBBERY

4 COUNT: 004, for a further and separate cause of complaint, being
5 a different offense from but connected in its commission with
6 the charge set forth in Count 003, complainant further complains
7 and says: On or about MAY 1, 2004 the crime of RESIDENTIAL
8 ROBBERY, in violation of Section 212.5(a) of the Penal Code, a
9 FELONY, was committed by JONAH BURGESS, AND GREGORY LOPEZ, who
10 did willfully, unlawfully, and by means of force and fear take
11 personal property from the person, possession and immediate
12 presence of JOHN DOE #2, in an inhabited dwelling house and/or
13 trailer coach.

14

15 AS TO JONAH BURGESS, ONLY
PC 12022.53^B USE OF FIREARM IN COMMISSION OF FELONY

16 It is further alleged that in the commission and the attempted
17 commission of the above offense, the defendant(s) JONAH BURGESS,
18 personally used a firearm, to-wit: HANDGUN, within the meaning
19 of Penal Code Section 12022.5(a) .

20

21 AS TO JONAH BURGESS, ONLY
PC 186.22(B) (1) STREET TERRORISM

22 It is further alleged that in the commission and attempted
23 commission of the above offense, the defendant committed said
24 crime for the benefit of, at the direction of, or in association
25 with NORTENO CRIMINAL STREET GANG, with the specific intent to
26 promote, further, or assist in any criminal conduct by gang
27 members, in violation of Penal Code Section 186.22(b) (1) .

28

1 AS TO GREGORY LOPEZ, ONLY
2 PC 12022.5 USE OF FIREARM IN COMMISSION OF FELONY

3 It is further alleged that in the commission and the attempted
4 commission of the above offense, the defendant(s) GREGORY LOPEZ,
5 personally used a firearm, to-wit: HANDGUN, within the meaning
6 of Penal Code Section 12022.5(a).

7
8 AS TO GREGORY LOPEZ, ONLY
9 PC 186.22(B)(1) STREET TERRORISM

10 It is further alleged that in the commission and attempted
11 commission of the above offense, the defendant committed said
12 crime for the benefit of, at the direction of, or in association
13 with NORTENO CRIMINAL STREET GANG, with the specific intent to
14 promote, further, or assist in any criminal conduct by gang
15 members, in violation of Penal Code Section 186.22(b)(1).

16 AS TO ALL DEFENDANTS
17 PC 459>1ST BURGLARY FIRST DEGREE

18 COUNT: 005, for a further and separate cause of complaint, being
19 a different offense from but connected in its commission with
20 the charge set forth in Count 004, complainant further complains
21 and says: On or about MAY 1, 2004 the crime of BURGLARY: FIRST
22 DEGREE, in violation of Section 459 of the Penal Code, a FELONY,
23 was committed by JONAH BURGESS, AND GREGORY LOPEZ, who did
24 willfully and unlawfully enter an inhabited dwelling house and
25 inhabited portion of a building occupied by JOHN DOE #2 with the
26 intent to commit larceny and any felony.

27 AS TO JONAH BURGESS, ONLY
28 PC 12022.5 USE OF FIREARM IN COMMISSION OF FELONY

It is further alleged that in the commission and the attempted

1 commission of the above offense, the defendant(s) JONAH BURGESS,
2 personally used a firearm, to-wit: HANDGUN, within the meaning
3 of Penal Code Section 12022.5(a).

4
5 PC 186.22(B)(1) AS TO JONAH BURGESS, ONLY
STREET TERRORISM

6 It is further alleged that in the commission and attempted
7 commission of the above offense, the defendant committed said
8 crime for the benefit of, at the direction of, or in association
9 with NORTENO CRIMINAL STREET GANG, with the specific intent to
10 promote, further, or assist in any criminal conduct by gang
11 members, in violation of Penal Code Section 186.22(b)(1).

12
13 PC 12022.5 AS TO GREGORY LOPEZ, ONLY
USE OF FIREARM IN COMMISSION OF FELONY

14 It is further alleged that in the commission and the attempted
15 commission of the above offense, the defendant(s) GREGORY LOPEZ,
16 personally used a firearm, to-wit: HANDGUN, within the meaning
17 of Penal Code Section 12022.5(a).

18
19 PC 186.22(B)(1) AS TO GREGORY LOPEZ, ONLY
STREET TERRORISM

20 It is further alleged that in the commission and attempted
21 commission of the above offense, the defendant committed said
22 crime for the benefit of, at the direction of, or in association
23 with NORTENO CRIMINAL STREET GANG, with the specific intent to
24 promote, further, or assist in any criminal conduct by gang
25 members, in violation of Penal Code Section 186.22(b)(1).

26
27 VC 10851(A) AS TO ALL DEFENDANTS
TAKE VEHICLE W/O OWNER'S CONSENT

28 COUNT: 006, for a further and separate cause of complaint, being

1 a different offense from but connected in its commission with
2 the charge set forth in Count 005, complainant further complains
3 and says: On or about MAY 1, 2004 the crime of THE UNLAWFUL
4 DRIVING OR TAKING OF A VEHICLE in violation of Section 10851(a)
5 of the Vehicle Code, a FELONY, was committed by JONAH BURGESS,
6 AND GREGORY LOPEZ, who at the time and place aforesaid did
7 willfully and unlawfully drive or take a certain vehicle, to
8 wit: 1967 CHEVY PICKUP TRUCK, then and there the personal
9 property of another, to wit: JOHN DOE #2.

10
11 AS TO JONAH BURGESS, ONLY
PC 12022.5 USE OF FIREARM IN COMMISSION OF FELONY

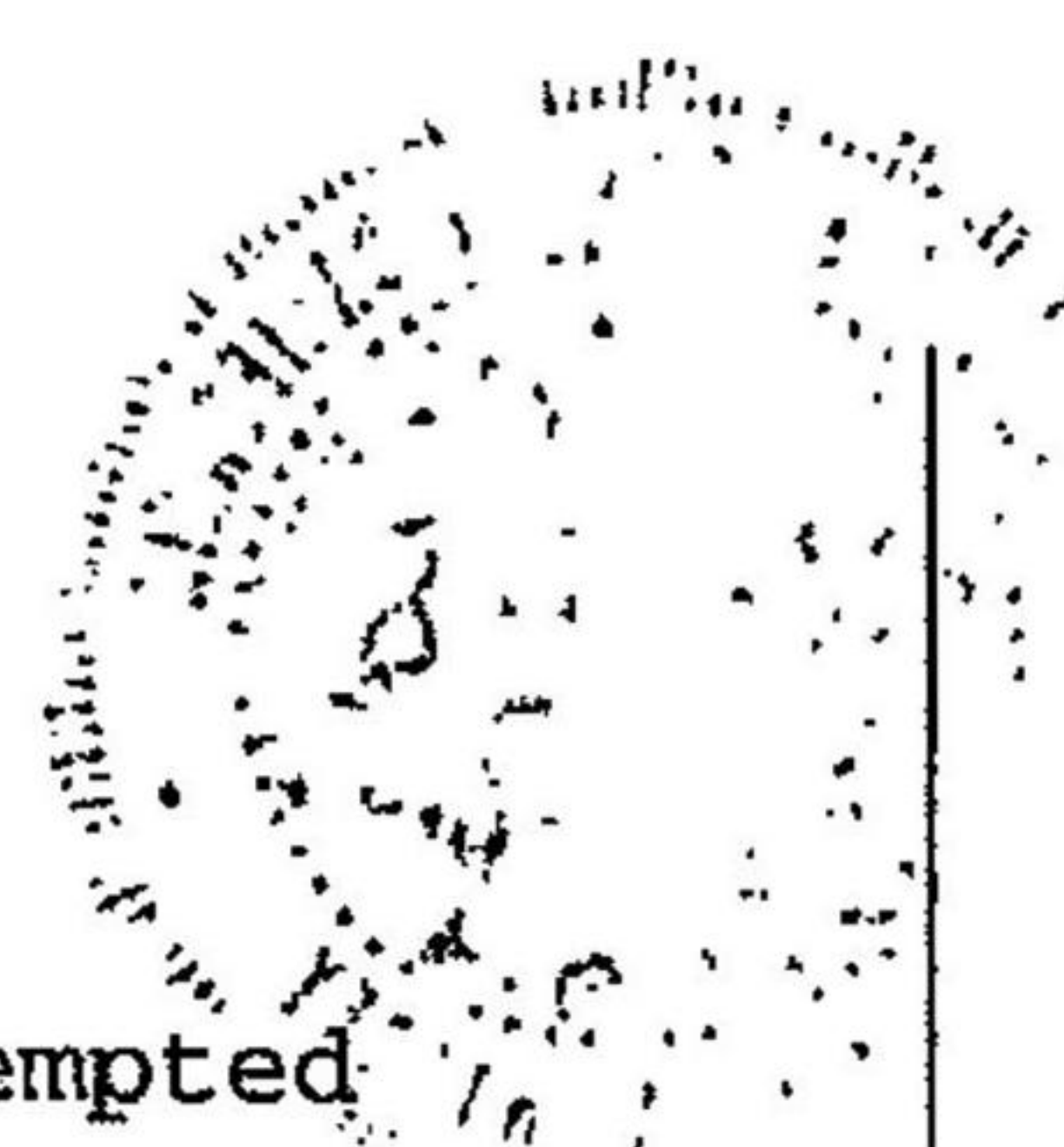
12 It is further alleged that in the commission and the attempted
13 commission of the above offense, the defendant(s) JONAH BURGESS,
14 personally used a firearm, to-wit: HANDGUN, within the meaning
15 of Penal Code Section 12022.5(a).

16
17 AS TO JONAH BURGESS, ONLY
PC 186.22(B)(1) STREET TERRORISM

18 It is further alleged that in the commission and attempted
19 commission of the above offense, the defendant committed said
20 crime for the benefit of, at the direction of, or in association
21 with NORTENO CRIMINAL STREET GANG, with the specific intent to
22 promote, further, or assist in any criminal conduct by gang
23 members, in violation of Penal Code Section 186.22(b)(1).

24
25 AS TO GREGORY LOPEZ, ONLY
PC 12022.5 USE OF FIREARM IN COMMISSION OF FELONY

26 It is further alleged that in the commission and the attempted
27 commission of the above offense, the defendant(s) GREGORY LOPEZ,
28 personally used a firearm, to-wit: HANDGUN, within the meaning



1 of Penal Code Section 12022.5(a).

2

3 AS, TO GREGORY LOPEZ, ONLY
PC 186.22(B)(1) STREET TERRORISM

4 It is further alleged that in the commission and attempted
5 commission of the above offense, the defendant committed said
6 crime for the benefit of, at the direction of, or in association
7 with NORTENO CRIMINAL STREET GANG, with the specific intent to
8 promote, further, or assist in any criminal conduct by gang
9 members, in violation of Penal Code Section 186.22(b)(1).

10

11 That attached hereto and by this reference incorporated herein is
12 a declaration setting forth facts in support of probable cause
13 for the issuance of warrant of arrest herein.

14

15 Pursuant to Penal Code Section 1054.5(B), the people are hereby
16 informally requesting that defendant's counsel provide discovery
17 to the people as required by Penal Code Section 1054.3.

18

19 I declare under penalty of perjury that the foregoing is
20 true and correct except for those things stated on information
21 and belief and those I believe to be true.

22

23 Executed on 08/20/2004, at SALINAS, California.

24

Chaste Harte

25

26

27

28

DEPUTY
MARSHIA BOYER

DATE
LISA M. GALDO, CLERK OF THE SUPERIOR COURT

FEB - 1 2006

I HEREBY CERTIFY THAT THE FOREGOING DOCUMENT IS A
TRUE COPY OF THE ORIGINAL ON FILE IN MY OFFICE.

